

April 06, 2018



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 12124
(SIXTEENTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain Division 4.2 and Division 4.3 materials in a non-DOT specification portable tank comparable to a DOT Specification 51 portable tank. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.242 and 173.244 in that a non-DOT specification portable tank is not authorized, except as specified herein.
5. BASIS: This special permit is based on the application of Total Petrochemicals USA, Inc., dated October 24, 2006, submitted in accordance with § 107.105 and the public proceeding thereon and additional information dated May 29, 2008.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Organometallic substance, liquid, water-reactive, flammable	4.3	UN3399	I
Organometallic substance, solid, water-reactive, flammable	4.3	UN3396	I & II
Organometallic substance, liquid, pyrophoric, water-reactive	4.2	UN3394	I
Organometallic substance, solid, pyrophoric, water-reactive	4.2	UN3393	I
Pyrophoric solid, inorganic, n.o.s.	4.2	UN3200	I
Water-reactive solid, corrosive, n.o.s.	4.3	UN3131	I
Water-reactive solid, n.o.s.	4.3	UN2813	I

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packaging is a non-DOT specification stainless steel portable tank conforming to the configuration and dimensions shown in Albemarle Drawing D-ALB.PROD.CON, Rev 0 dated October 20, 1998 and James Machine Works Drawings 9699-1 (Revised) and 9699-5 on file with the Office of Hazardous Materials Safety Approvals and Permits Division (OHMSAPD). The portable tank has the following features:

- (1) a minimum wall thickness of 9.5 mm (0.375 in);
- (2) a maximum allowable working pressure of 8.62 bar (125 psig);

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- (3) a capacity not to exceed 880 liters (232 gallons);
- (4) a cone-shaped funnel bottom with a bottom discharge fitted with a block valve that may have an eductor fitted to the inlet side of the valve;
- (5) a maximum loading or discharge pressure of 3.5 bar (50 psig); and
- (6) a spring loaded pressure relief valve set at 8.62 bar (125 psig).

In addition, the portable tank must conform with DOT Specification 51 (§ 178.245), including ASME certification and "U" stamp, except as follows:

- (1) § 178.245-1(c). The tank has a bottom discharge fitted with a block valve that may have an eductor fitted to the inlet side of the valve in addition to openings on the top of the tank.
- (2) § 178.245-1(d)(4). The portable tank is not mounted in a full framework for containerized transport and the bottom discharge is not fitted with an internal self-closing stop-valve.
- (3) § 178.245-7(a). The line on the name plate which reads "DOT Specification No." must be marked "DOT-SP 12124".

b. TESTING - Each portable tank must be tested and periodically re-qualified as required for a DOT Specification 51 steel portable tank. Minimum test pressure is 12.93 bar (187.5 psig).

c. OPERATIONAL CONTROLS -

- (1) Bottom outlets must be closed with two devices during transportation. A discharge valve provides the first device. The secondary device may be a blind flange, a threaded plug or a camlock cap.
- (2) A dry nitrogen blanket of 0.7 bar (10 psig) must be applied to the lading during transportation.

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8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. This special permit also serves as a Competent Authority Approval (CA-9812012) issued by the Associate Administrator for the Office of Hazardous Materials Safety of the United States, in accordance with Section 7.9 of the International Maritime Dangerous Goods (IMDG) Code.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: kah